

In the Circuit Court of the
Ninth Judicial Circuit, in and
For Orange County, Florida

State of Florida

Case number: 2016-CF-013766-A-O
Division: Div 12

vs.

ALYSON NICOLE LONDON
D.O.B.: 10/22/1971

ORDER OF PROBATION

This cause coming on this day for: Sentencing, with Asst State Attorney, Sean Wiggins, present and you, the defendant, ALYSON NICOLE LONDON being now Present and represented by KIMBERLY LASURE Present, you have:

1. SOLICITATION TO COMMIT SEXUAL BATTERY OF A PERSON BETWEEN TWELVE AND EIGHTEEN (PHYSICALLY HELPLESS) - 794.011(4)(A) - Second Degree - Felony -

Nolle Prosequi (NC)

2. SOLICITATION TO COMMIT SEXUAL BATTERY OF A PERSON BETWEEN TWELVE AND EIGHTEEN (PHYSICALLY HELPLESS) - 794.011(4)(A) - Second Degree - Felony -

Nolle Prosequi (NC)

3. SOLICITATION TO COMMIT SEXUAL BATTERY OF A PERSON BETWEEN TWELVE AND EIGHTEEN (PHYSICALLY HELPLESS) - 794.011(4)(A) - Second Degree - Felony -

Nolle Prosequi (NC)

4. SOLICITATION TO COMMIT SEXUAL BATTERY OF A PERSON BETWEEN TWELVE AND EIGHTEEN (PHYSICALLY HELPLESS) - 794.011(4)(A) - Second Degree - Felony -

Nolle Prosequi (NC)

5. UNLAWFUL USE OF A TWO-WAY COMMUN. DEVICE - 934.215 - Third Degree - Felony -

1 - Adjudicated Guilty

CONFINEMENT:

You are hereby ordered to serve a term of 5 Months in the Orange County Jail with credit for 1 Days time served. Report to the Orange County Jail: by 9:00 AM on 1/3/2018 to Begin Serving Sentence (CONDITION OF PROBATION)

This Sentence to Run Concurrent with each count.

PROBATION:

Now, therefore, it is ordered and adjudged that you be placed on Supervised Probation for a period of 4 Years under the Florida Department of Corrections. Report to Probation: by 4:00 PM Today, 12/8/2017

6. FAILURE TO REPORT CHILD ABUSE - 39.205(1) - Third Degree – Felony -

1 - Adjudicated Guilty

CONFINEMENT:

You are hereby ordered to serve a term of 5 Months in the Orange County Jail with credit for 1 Days time served. Report to the Orange County Jail: by 9:00 AM on 1/3/2018 to Begin Serving Sentence (CONDITION OF PROBATION)

This Sentence to Run Concurrent with each count.

PROBATION:

Now, therefore, it is ordered and adjudged that you be placed on Supervised Probation for a period of 4 Years under the Florida Department of Corrections.

7. TRANSMISSION OF MATERIAL HARMFUL TO MINORS - 847.0138(2) - Third Degree - Felony -

Nolle Prosequi (NC)

8. FAILURE TO REPORT CHILD ABUSE - 39.205(1) - Third Degree - Felony -

Nolle Prosequi (NC)

9. FAILURE TO REPORT CHILD ABUSE - 39.205(1) - Third Degree - Felony -

Nolle Prosequi (NC)

10. FAILURE TO REPORT CHILD ABUSE - 39.205(1) - Third Degree - Felony -

Nolle Prosequi (NC)

11. FAILURE TO REPORT CHILD ABUSE - 39.205(1) - Third Degree - Felony -

Nolle Prosequi (NC)

Court Minutes

State Orally Announced a Nolle Prosequi in Open Court as to Count: 1 thru 4 and 7 thru 11

FINES AND COSTS AS TO THIS CASE:

Pay fine / costs totaling: \$4,238.00

IT IS FURTHER ORDERED that you shall comply with the following standard conditions of supervision as provided by Florida law:

- (1) You will report to the probation officer as directed.
- (2) You will pay the State of Florida the amount of \$20.00 per month, as well as 4% surcharge, toward the cost of your supervision in accordance with s. 948.09, F.S., unless otherwise exempted in compliance with Florida Statutes.
- (3) You will remain in a specified place. You will not change your residence or employment or leave the county of your residence without first procuring the consent of your officer.
- (4) You will not possess, carry or own any firearm. You will not possess, carry, or own any weapon without first procuring the consent of your officer.
- (5) You will live without violating any law. A conviction in a court of law is not necessary for such a violation of law to constitute a violation of your probation, community control, or any other form of court ordered supervision.
- (6) You will not associate with any person engaged in any criminal activity.
- (7) You will not use intoxicants to excess or possess any drugs or narcotics unless prescribed by a physician. Nor will you visit places where intoxicants, drugs or other dangerous substances are unlawfully sold, dispensed or used.
- (8) You will work diligently at a lawful occupation, advise your employer of your probation status, and support any dependents to the best of your ability, as directed by your officer.
- (9) You will promptly and truthfully answer all inquiries directed to you by the court or the officer, and allow your officer to visit in your home, at your employment site or elsewhere, and you will comply with all instructions your officer may give you.
- (10) You will pay restitution, court costs, and/or fees in accordance with special conditions imposed or in accordance with the attached orders.
- (11) You will submit to random testing as directed by your officer or the professional staff of the treatment center where you are receiving treatment to determine the presence or use of alcohol or controlled substances.
- (12) You will submit a DNA sample, as directed by your officer, for DNA analysis as prescribed in ss. 943.325 and 948.014, F.S.
- (13) You will submit to the taking of a digitized photograph by the department. This photograph may be displayed on the department's website while you are on supervision, unless exempt from disclosure due to requirements of s. 119.07, F.S.
- (14) You will report in person within 72 hours of your release from incarceration to the probation office in Orange County, Florida, unless otherwise instructed by the court or department. (This condition applies only if section 3 on the previous page is checked.) Otherwise, you must report immediately to the probation office located at.

Special Conditions

- ___ 1. You must undergo a Drug and Alcohol evaluation and, if treatment is deemed necessary, you must successfully complete the treatment, and be responsible for the payment of any costs incurred while receiving said evaluation and treatment, unless waived by the court.
- ___ 2. You will be required to pay for drug testing unless exempt by the court.

___ 3. You will enter the Department of Corrections Non-Secure Drug Treatment Program or other residential treatment program/Probation Restitution Center for a period of successful completion as approved by your officer. You are to remain until you successfully complete said Program and Aftercare. You are to comply with all rules and regulations of the Program. You shall be confined in the county jail until placement in said program, and if you are confined in the jail, the Sheriff will transport you to said program.

___ 4. You will abstain entirely from the use of alcohol and/or illegal drugs, and you will not associate with anyone who is illegally using drugs or consuming alcohol.

___ 5. You will submit to urinalysis testing on a monthly basis to determine the presence of alcohol or illegal drugs. You will be required to pay for the test unless exempt by the court.

___ 6. You will not visit any establishment where the primary business is the sale and dispensing of alcoholic beverages.

___ 7. You will remain at your residence between 10 p.m. and 6 a.m. due to a curfew imposed, unless otherwise directed by the court.

___ 8. You will submit electronic monitoring, follow the rules of electronic monitoring, and pay for the cost of the electronic monitoring service.

___ 9. You will not associate with the following person(s) during the period of supervision:

☒ 10. You will have no contact (direct or indirect) with the victim or the victim's family during the period of supervision.

As to Count 5 and 6 or the Victim's Family.

___ 11. You will have not contact (direct or indirect) the following person(s) during the period of supervision:

___ 12. You will maintain full time employment or attend school/vocational school full time or a combination of school/work during the term of your supervision.

___ 13. You will make a good faith effort toward completing basic or functional literacy skills or a high school equivalency diploma.

___ 14. You will successfully complete the Probation & Restitution Program, abiding by all rules and regulations.

___ 15. You will attend a support group with a focus on the below, at least monthly, unless otherwise directed by the court.

___ 16. You must successfully complete Anger Management and be responsible for the payment of any costs incurred while receiving treatment, unless waived. If convicted of a Domestic Violence offense, as defined in s. 741.25, F.S., you must attend and successfully complete a batterer's intervention program, unless otherwise directed by the court.

___ 17. You must successfully complete Batterer's Intervention Program and be responsible for the payment of any costs incurred while receiving treatment unless waived. If convicted of a Domestic Violence offense, as defined in s. 741.25, F.S., you must attend and successfully complete a batterer's intervention program, unless otherwise directed by the court.

___ 18. You will attend an HIV/AIDS Awareness Program consisting of a class of not less than two (2) hours or more than four (4) hours in length, the costs for which will be paid by you.

___ 19. If you have been found to have committed a crime on or after October 1, 2008 for the purpose of benefitting, promoting, or furthering the interests of a criminal gang, you are prohibited from knowingly associating with other criminal gang members or associates, except as authorized by law enforcement officials, prosecutorial authorities, or the court, for the purpose of aiding in the investigation of criminal activity.

___ 20. You will successfully complete a Post-adjudicatory treatment-based drug court program, as provided in s.397.334 (3), F.S.

___ 21. If you are required to register as a sexual predator under s. 775.21 or sexual offender under s. 943.0435, s. 944.606, or s. 944.607, F.S., you will undergo an evaluation, at your expense, by a qualified practitioner to determine whether you need sexual offender treatment. If the qualified practitioner determines that sexual offender treatment is needed and recommended, you must successfully complete and pay for the treatment as provided in s. 948.31, F.S.

___ 22. Pay \$1 per month during the term of probation or community control to supplement rehabilitative efforts through First Step Funds, pursuant to s. 948.039(2), F.S.

___ 23. If you are a veteran, as defined in s. 1.01, F.S. or service member, as defined in s. 250.01, F.S., you will participate in a treatment program capable of treating mental illness, traumatic brain injury, substance abuse disorder, or psychological problems.

___ 24. You will successfully complete a post-adjudicatory mental health court program under s. 394.47892, F.S.

___ 25. You will successfully complete a post-adjudicatory military veterans and service members court program under s. 394.47891, F.S.

☒ 26. Other:

As to Count 5 and 6

Surrender Educators Certification for Permanent Revocation.

Defendant may NOT be Employed and/or Volunteer with ANY Entity that would Cause the Defendant to have Contact with any Minors.

Psycho-Sexual Evaluation and Treatment: Evaluation is to be Completed within 30 Days of Release. Complete any Recommended Treatment as Required.

As to Count 5 and 6

All Monies Imposed are to be Paid thru Probation as a Condition of Probation at rate of \$30.00 per Month Beginning within 60 days of Release.

Additional Conditions

- ☐ Defendant not to have any Hostile Contact with Victim or Victim's Family.
- ☐ Do not possess or consume illegal drugs or alcohol
- ☐ Do not drive without valid Driver's License
- ☐ Do not own or possess any firearms or weapons
- ☐ Complete Impulse Control Class
- ☐ Complete DUI Counter Attack School
- ☐ Do not be in the vicinity of alcohol
- ☐ Write a letter of apology
- ☐ No Contact with children under 18 years of age
- ☐ No return to scene of offense
- ☐ Submit to random urinalysis
- ☐ Complete the Victim Awareness Program
- ☐ Forfeit weapon seized in this case
- ☐ You may travel out of county while on probation
- ☐ Defendant must actively seek gainful employment or be enrolled in school full-time.

___ Defendant must take HIV/STD test.

___ The defendant is to complete the Phoenix House In-House treatment program.

___ Defendant not to return to the prostitution mapping zone.

___ Defendant to have no contact with co-defendant(s)

___ Complete community service at non-profit community service.

___ Probation supervision may terminate early upon approval from the Court.

Effective for offenders whose crime was committed on or after September 1, 2005, there is hereby imposed, in addition to any other provision in this section, mandatory electronic monitoring as a condition of supervision for those who:

- Are placed on supervision for a violation of chapter 794, s. 800.04(4), (5), or (6), s. 827.071, or s. 847.0145 and the unlawful sexual activity involved a victim 15 years of age or younger and the offender is 18 years of age or older; or
- Are designated as a sexual predator pursuant to s. 775.21; or
- Has previously been convicted of a violation of chapter 794, s. 800.04(4), (5), or (6), s. 827.071, or s. 847.0145 and the unlawful sexual activity involved a victim 15 years of age or younger and the offender is 18 years of age or older.

You are hereby placed on notice that should you violate your probation or community control, and the conditions set forth in s. 948.063(1) or (2) are satisfied, whether your probation or community control is revoked or not revoked, you shall be placed on electronic monitoring in accordance with F.S. 948.063.

Effective for offenders who are subject to supervision for a crime that was committed on or after May 26, 2010, and who has been convicted at any time of committing, or attempting, soliciting, or conspiring to commit, any of the criminal offenses listed in s. 943.0435(1)(a)1.a.(I), or a similar offense in another jurisdiction, against a victim who was under the age of 18 at the time of the offense; the following conditions are imposed in addition to all other conditions:

- (a) A prohibition on visiting schools, child care facilities, parks, and playgrounds, without prior approval from the offender's supervising officer. The court may also designate additional location to protect a victim. The prohibition for the sole purpose of attending a religious service as defined in s. 775.0861 or picking up or dropping off the offender's children, grandchildren at a child care facility or school.
- (b) A prohibition on distributing candy or other items to children on Halloween; wearing a Santa Claus costume, or other costume to appeal to children, on or preceding Christmas; wearing a Easter Bunny costume, or other costume to appeal to children, on or preceding Easter; entertaining at children's parties; or wearing a clown costume; without prior approval from the court.

Effective for offenders whose crime was committed on or after October 1, 2014, and who is placed on probation or community control for a violation chapter 794, s. 800.04, s. 827.071, s. 847.0135(5), or s. 847.0145, in addition to all other conditions imposed, is prohibited from viewing, accessing, owning, or possessing any obscene, pornographic, or sexually stimulating visual or auditory material unless otherwise indicated in the treatment plan provided by a qualified practitioner in the sexual offender treatment program. Visual or auditory material includes, but is not limited to, telephone, electronic media, computers programs, and computer services.

YOU ARE HEREBY PLACED ON NOTICE that the court may at any time rescind or modify any of the conditions of your probation, or may extend the period of probation as authorized by law, or may discharge you from further supervision. If you violate any of the conditions of your probation, you may be arrested and the court may revoke your probation, adjudicate you guilty if adjudication of guilt was withheld, and impose any sentence that it might have imposed before placing you on probation or require you to serve the balance of the sentence.

IT IS FURTHER ORDERED that when you have been instructed as to the conditions of probation, you shall be released from custody if you are in custody, and if you are at liberty on bond, the sureties thereon shall stand discharged from liability. (This paragraph applies only if section 1 or section 2 is checked.)

IT IS FURTHER ORDERED that the clerk of this court file this order in the clerk's office and provide certified copies of same to the officer for use in compliance with the requirements of law.

DONE, ORDERED and FILED in Open Court on December 8, 2017

Honorable Judge: 

Mark S Blechman

Deputy Clerk in Attendance: Maria F.

Office of Tiffany M. Russell, Orange County Clerk of the Circuit and County Courts

I acknowledge receipt of a copy of this order and that the conditions have been explained to me and I agree to abide by them.

Defendant Instructed by: _____

Supervising Officer

☒ Defendant
☐ Dockets

☐ ACS
☐ C.F.S.C.

☒ State Atty
☒ Prob Email

☒ Defense Atty